

SENATE No. 2318

The Commonwealth of Massachusetts

PRESENTED BY:

Pavel M. Payano

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preserving broadband service for low-income consumers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Pavel M. Payano</i>	<i>First Essex</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/12/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/21/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/21/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/11/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>3/11/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/16/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>7/31/2025</i>

SENATE No. 2318

By Mr. Payano, a petition (accompanied by bill, Senate, No. 2318) of Pavel M. Payano, Jason M. Lewis, Joanne M. Comerford and Michael O. Moore for legislation to preserve broadband service for low-income consumers. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving broadband service for low-income consumers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 25C of the General Laws is hereby amended by inserting after
2 Section 9 the following section:-

3 Section 10. Broadband internet access service for low-income consumers.

4 a) For the purposes of this section, the term "broadband internet access service" shall
5 mean a mass-market retail service that provides the capability to transmit data to and receive data
6 from all or substantially all internet endpoints, including any capabilities that are incidental to
7 and enable the operation of the communications service provided by a wireline, fixed wireless or
8 satellite service provider, but shall not include dial-up service.

9 b) Every person, business, corporation, or their agents providing or seeking to provide
10 wireline, fixed wireless or satellite broadband service in the commonwealth shall, no later than
11 sixty days after the effective date of this section, offer high speed broadband service to low-
12 income consumers whose household:

(i) has a member that participates in one of these assistance programs:

1. SNAP
2. Medicaid
3. Supplemental Security Income (SSI)
4. Federal or State Housing Assistance
5. WIC
6. Veterans Pension or Survivor Benefits
7. Lifeline
8. Qualifying Tribal land assistance programs
9. Free or reduced-priced lunch through the National School Lunch Program; or

(ii) whose annual gross household income is not in excess of two hundred percent of the federal poverty guidelines as updated periodically in the Federal Register by the United States Department of Health and Human Services under the authority of 42 U.S.C. § 9902(2).

c) Such low-income broadband service shall provide a minimum download speed equal to the greater of one hundred megabits per second download speed or the download speed of the provider's existing low-income broadband service sold to customers in the state subject to exceptions adopted by the department of telecommunications and cable where such download speed is not reasonably practicable.

d) Broadband service for low-income consumers, as set forth in this section, shall be provided at a cost of no more than fifteen dollars per month, inclusive of any recurring taxes and fees such as recurring rental fees for service provider equipment required to obtain broadband service and usage fees. Broadband service providers shall allow low-income broadband service subscribers to purchase standalone or bundled cable and/or phone services separately. Broadband service providers may, once every five years, and after thirty days' notice to its customers and the department of public service, increase the price of this service by the lesser of the most recent change in the consumer price index or a maximum of two percent per year of the price for such service.

(e) Broadband service for low-income consumers of public entities that provide or seek to provide wireline, fixed wireless or satellite broadband service in the commonwealth may be provided at a cost of no more than fifteen dollars per month or at a cost that is not overly financially burdensome to the public entity.

f) A broadband service provider who offers a high speed broadband service to eligible low-income customers, as such term is used in subdivision two of this section, at a download speed of two hundred megabits per second or greater at a cost of no more than twenty dollars per month, inclusive of any recurring taxes and fees such as recurring rental fees for service provider equipment required to obtain broadband service and usage fees, shall be considered to be in compliance with the requirements of subdivisions two and three of this section. Such providers may, once every two years, and after thirty days' notice to its customers and the department of telecommunications and cable increase the price of such service by the lesser of the most recent change in the consumer price index or a maximum of two percent per year of the price for such service.

54 g) Every person, business, corporation, or their agents providing or seeking to provide
55 broadband service in Massachusetts shall make all commercially reasonable efforts to promote
56 and advertise the availability of broadband service for low-income consumers including, but not
57 limited to, the prominent display of, and enrollment procedures for, such service on its website
58 and in any written and commercial promotional materials developed to inform consumers who
59 may be eligible for service pursuant to this section.

60 f) Every person, business, corporation, or their agents providing or seeking to provide
61 broadband service in Massachusetts shall annually submit to the department of
62 telecommunications and cable no later than November fifteenth after the effective date of this
63 act, and annually thereafter, a compliance report setting forth: (a) a description of the service
64 offered pursuant to this section; (b) the number of consumers enrolled in such service; (c) a
65 description of the procedures being used to verify the eligibility of customers receiving such
66 service; (d) a description and samples of the advertising or marketing efforts undertaken to
67 advertise or promote such service; (e) a description of all retail rate products, including pricing,
68 offered by such person, business, corporation, or their agents; (f) a description, including speed
69 and price, of all broadband products offered in the Commonwealth of Massachusetts; and (g)
70 such other information as the department of telecommunications and cable may require.

71 g) The department of telecommunications and cable shall, within two years of the
72 effective date of this section and at least every five years thereafter, undertake a proceeding to
73 determine if the minimum broadband download speed in this section should be increased to the
74 federal communications commission's benchmark broadband download speed, or to another
75 minimum broadband download speed if the federal communications commission has not
76 increased its benchmark by such date. The department of telecommunications and cable shall

also: (a) undertake appropriate measures to inform the public about available broadband products, including retail rate product offerings and low-income offerings; and (b) periodically, but no less than once every five years, review eligibility requirements for the low-income service required pursuant to this section, and update such requirements as may be necessary to meet the needs of consumers.

h) Whenever there shall be a violation of this section, an application may be made by the attorney general in the name of the people of the commonwealth to a court or justice having jurisdiction by a special proceeding to issue an injunction, and upon notice to the defendant of not less than five days, to enjoin and restrain the continuance of such violation; and if it shall appear to the satisfaction of the court or justice that the defendant has, in fact, violated this section, an injunction may be issued by the court or justice, enjoining and restraining any further violations, without requiring proof that any person has, in fact, been injured or damaged thereby. In any such proceeding, the court may make allowances to the attorney general as provided in section five of chapter twelve of civil actions and direct restitution. Whenever the court shall determine that a violation of this section has occurred, the court may impose a civil penalty of not more than one thousand dollars per violation. In connection with any such proposed application, the attorney general is authorized to take proof and make a determination of the relevant facts and to issue subpoenas in accordance with the civil practice law and rules.

SECTION 2. This act shall take effect upon its passage.